

DRUG AND ALCOHOL TESTING FOR EMPLOYEES REQUIRED
TO HOLD A COMMERCIAL DRIVERS LICENSE (CDL)

The Loudoun County School Board (School Board) takes all possible steps to ensure safe transportation for LCPS students and staff. The School Board has established a drug and alcohol testing program for all employees who are required to hold a commercial driver's license (CDL). This program is designed to fulfill the requirements of federal law and regulations.

A. Testing. School bus drivers shall be subject to a drug and/or alcohol testing program that fulfills the requirements of the U.S. Code of Federal Regulations, Title 49, Part 382.

Other employees who drive vehicles designed to transport 16 or more passengers, including the driver, or vehicles that have a gross combination weight of 26,001 or more pounds are likewise subject to the drug and alcohol testing program.

Testing procedures and facilities used for the tests shall conform with the requirements of the U.S. Code of Federal Regulations, Title 49, Section 40 et seq.

B. Enforcement. Notwithstanding the consequences provided for under the regulations of the Federal Department of Transportation (DOT) and Federal Motor Carrier Safety Administration (FMCSA), contained in 49 CFR Parts 40 and 382, et al., any employee working in a safety sensitive capacity and/or exercising their CDL license who violates this policy shall be subject to the following consequences established by the School Board:

1. Refusal to consent to alcohol and/or drug testing will result in immediate removal from duty and termination of employment.

2. A positive test for a controlled substance will result in immediate removal from duty, a referral to an alternative substance abuse and recovery program, as outlined in Regulation 7324 - Drug and Alcohol Testing for Employees Required to Hold a CDL, and may result in discipline, up to, and including, termination of the employment.

3. A blood alcohol concentration of .04 or greater will result in the immediate removal from duty, a referral to an alternative substance abuse and recovery program, as outlined in Regulation 7324 - Drug and Alcohol Testing for Employees Required to Hold a CDL, and may result in discipline, up to, and including, termination of employment.

4. A blood alcohol concentration of .02 to .039 will result in the immediate removal from duty for a period of no less than 24 hours and a referral to an alternative substance abuse and recovery program. Test results at this level, coupled with facts and circumstances indicating the employee was under the influence of alcohol at work,

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may lead to discipline up to and including termination, provided the action is not based solely on the test results.

C. FMCSA Clearinghouse and Mandated Reporting. Per 49 CFR § 382.701, employers must comply with the following:

1. Pre-Employment.
 - a. Employers must not employ a driver subject to controlled substances and alcohol testing to perform a safety-sensitive function without first conducting a pre-employment query of the Clearinghouse to determine whether the driver has a verified positive, adulterated, or substituted controlled substances test result; has an alcohol confirmation test with a concentration of 0.04 or higher; has refused to submit to a test in violation of § 382.211; or that an employer has reported actual knowledge, as defined by § 382.107, that the driver used alcohol on duty in violation of § 382.205, used alcohol before duty in violation of § 382.207, used alcohol following an accident in violation of § 382.209, or used a controlled substance, in violation of § 382.213.
 - b. The employer must conduct a full query under this section, which releases information in the Clearinghouse to said employer and requires that the individual driver give consent prior to the query being conducted.
2. Annual Query Required.
 - a. At least once per year, employers must conduct a query of the Clearinghouse for information on all employees subject to controlled substance and alcohol testing under this part to determine whether derogatory information exists in the Clearinghouse about those employees. The individual driver may give consent to conduct limited queries that are effective for more than one year.
 - b. In lieu of a full query, as described in Section (C)(1) of this Policy, an employer may obtain the individual driver's consent to conduct a limited query to satisfy the annual query requirement in Section (C)(2) of this Policy. The limited query will inform the employer whether there is information about the individual driver in the Clearinghouse but will not release that information to the employer.

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- c. If the limited query shows that information exists in the Clearinghouse about the individual driver, the employer must conduct a full query, in accordance with Section (C)(1) of this Policy, within 24 hours of conducting the limited query. If the employer fails to conduct a full query within 24 hours, the employer must not allow the driver to continue to perform any safety-sensitive function until the employer conducts the full query and the results confirm that the driver's Clearinghouse record contains no prohibitions as defined in Section 4) of this Policy.

3. Employer Notification.

- a. If any information described in paragraph (C)(1) of this section is entered into the Clearinghouse about a driver within 12 months of a pre-employment or annual query being conducted by an employer, FMCSA will notify the employer.

4. Prohibitions.

- a. No employer may allow a driver to perform any safety-sensitive function if the results of a Clearinghouse query demonstrate that the driver has a verified positive, adulterated, or substituted controlled substances test result; has an alcohol confirmation test with a concentration of 0.04 or higher; has refused to submit to a test in violation of § 382.211; or that an employer has reported actual knowledge, as defined by § 382.107, that the driver used alcohol on duty in violation of § 382.205, used alcohol before duty in violation of § 382.207, used alcohol following an accident in violation of § 382.209, or used a controlled substance in violation of § 382.213, except where a query of the Clearinghouse demonstrates:
 - (i) That the driver has successfully completed the Substance Abuse Professional (SAP) evaluation, referral, and education/treatment process set forth in part 40, subpart O, of this title; achieves a negative return-to-duty test result; and completes the follow-up testing plan prescribed by the SAP.
 - (ii) That, if the driver has not completed all follow-up tests as prescribed by the SAP, in accordance with § 40.307 of this title and specified in the SAP report required by § 40.311 of this title, the driver has completed the SAP evaluation,

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referral, and education/treatment process set forth in part 40, subpart O of this title and achieves a negative return-to-duty test result, and the employer assumes the responsibility for managing the follow-up testing process associated with the testing violation.

5. Recordkeeping Required.

- a. Employers must retain for 3 years a record of each query and all information received in response to each query made under this section. As of January 6, 2023, an employer who maintains a valid registration fulfills this requirement.

Former Policy 7-15 Adopted: 4/6/95

Revised: 5/25/10, 2/23/16, 5/25/21

Current Revision: 11/26/24

Legal Refs.: Code of Federal Regulations, [Title 49, Part 382](#); Code of Federal Regulations, [Title 49, Part 40](#), *et seq.*

Cross Refs.: Policy [7322](#), Records Required of Commercial Driver's License (CDL) Holders; Policy [7550](#), Drug- And Alcohol-Free Workplace; Regulation [7324](#), Drug and Alcohol Testing for Employees Required to Hold a Commercial Driver's License (CDL)